

Court No. - 21

Case :- WRIT - C No. - 14162 of 2023

Petitioner :- Radhey Shyam Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Anand Vijay Singh

Counsel for Respondent :- C.S.C, Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent Electricity Department to obtain instructions.

List as fresh on 2.5.2023.

In the meantime, if any date is notified for auction, it shall be postponed.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.4.2023

Jaideep/-

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed praying for a writ of certiorari quashing the auction notices dated 29.4.2022, 30.5.2022 and 28.2.2022 and for a direction to the respondent-authorities to make final assessment in the light of the order dated 10.1.2022, passed by Superintending Engineer, Ballia, within a fixed period.

The auction proceedings have been undertaken by the respondents for realization of a sum of Rs. 4,92,750/- plus other charges from the petitioner, on basis of an order of final assessment passed against the petitioner under the provisions of the Electricity Act, 2003.

Sri Chetan Chatterjee, learned counsel for the respondent-Electricity Department, is in receipt of instructions. A set of documents received by him from the concerned respondent has been placed before us for perusal and it reveals that on 28.8.2020, notice of provisional assessment was sent to the petitioner by registered post on 3.9.2020, fixing 10.9.2020 as date for hearing. Concededly, under the provisions of the Electricity Supply Code, 2005, the consumer should be given fifteen days clear time to submit objections and only thereafter date of hearing could be fixed. Consequently, the notice of provisional assessment itself was illegal.

Moreover, the order of final assessment dated 29.9.2020 only mentions about the provisional assessment notice and the fact that therein 10.9.2020 was fixed as date for hearing. It does not record any finding as to whether the petitioner had filed any objection against the notice of provisional assessment or whether he had appeared on the date of hearing or not. It also does not record any finding that the petitioner had committed theft of electricity and how the amount has been assessed.

Sri Chetan Chatterjee, learned counsel appearing on behalf of the respondent-Electricity Department, concedes that the notice of provisional assessment as well as final assessment are not in accordance with the provisions of law.

Daily we are coming across cases where the assessing officers are not following the procedure prescribed under law, resulting in unnecessary harassment of the consumer and multiplication of litigation.

While we quash the order of final assessment and the consequential action taken by the respondents for realization of the said sum, we leave it open to the respondents to proceed afresh in accordance with law. At the same time, we direct the Registrar (Compliance) to communicate the instant order to the Managing Director of the concerned DISCOM so that the manner in which the assessing officers of the Department are proceeding in cases of assessment, comes to his notice and appropriate action as deemed necessary is taken by him against the erring officer.

The petition is accordingly allowed to the extent indicated above.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023/Jaideep/-